

25STCV17825 25STCV17825

County: los-angeles
Division: Civil Law and Motion
Department: 733
Hearing date: 2026-09-17
Motion: PLAINTIFF'S MOTION FOR ATTORNEY FEES AND COSTS
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Case Number: 25STCV17825 Hearing Date: September 17, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DANNY
ORTEGA, an individual,

Plaintiff,

vs.

DAPPZ SPORTS, a California corporation; ANDREW SCHABERG,
an individual; MATT MCGUCKIN, an individual; and DOES 1 through 50 inclusive,

Defendants.

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CASE

NO.: 25STCV17825

[TENTATIVE] ORDER RE: PLAINTIFF'S
MOTION FOR ATTORNEY FEES AND COSTS

Dept. 733

8:30 a.m.

September 17, 2026

I.

INTRODUCTION

On

June 20, 2025, Plaintiff Danny Ortega ("Plaintiff") filed a complaint against Defendants Dappz Sports ("Dappz"), Andrew Schaberg ("Schaberg") and Matt McGuckin ("McGuckin") (collectively, "Defendants"), alleging causes of action for (1) Violation of Labor Code section 1102.5, (2) Violation of Labor Code section 98.6, (3) Failure to Pay for All Hours Worked, (4) Failure to Pay Commissions, (5) Failure to Provide Itemized Wage Statements, (6) Breach of Contract, (7) Violation of California Business and Profession Code section 17200, and (8) Wrongful Termination in Violation of Public Policy.

On

November 12, 2025, the Court Clerk, upon Plaintiff's request, dismissed Schaberg and Does 1-50, inclusive.

On

March 19, 2026, the Court Clerk entered default against Dappz and McGuckin.

On

May 7, 2026, the Court entered default judgment against Dappz and McGuckin.

On

July 2, 2026, Plaintiff filed the instant motion for attorneys' fees and costs.

II.

DISCUSSION

Following the

entry of default judgment, Plaintiff requests an award of \$31,800.00 in attorney fees, \$1,177.24 in costs, \$12,456.17 in pre-judgment interest, and post-judgment interest at a rate of 10% per annum on the principal amount of the money judgment.

"[A]s a general

rule, attorney fees are not recoverable as costs unless they are authorized by statute or agreement." (People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc. (2007) 147 Cal.App.4th 424, 429.)

California Labor Code sections 1102.5 and 218.6

provides for the recovery of attorneys' fees and costs. (Cal. Lab. Code § 1102.5(j); id. § 218.6; see Compl.)

However, given

that the judgment was made upon default, the amount of fees requested is incorrectly calculated from the fee schedule found in the Local Rules rule 3.214(a). Local Rules rule 3.207(a) states that "[i]f attorneys' fees are awarded on default, they shall be determined in accordance with Local Rule 3.214." Local Rules rule 3.214(a) then states that "[w]hen a promissory note, contract, or statute provides for the recovery of reasonable attorneys' fees, the following schedule will apply to the amount of the new judgment unless otherwise determined by the court." Plaintiff has not provided any explanation why the Court should stray from this fee schedule.

Thus, the correct

calculation pursuant to the rule would be "\$2,890 plus 1% of the excess over

\$100,000.” (Ibid.) The judgment in this matter was \$150,000.00. The calculation would therefore be $\$2,890 + (1\% \times 50,000.00) = \$3,390.00$.

As for costs, on

May 26, 2026, Plaintiff filed a costs memorandum, which includes \$504.36 in filing and motion fees and \$522.42 in service of process. This totals \$1,026.78.

As for

interest, Plaintiff seeks \$12,456.16. Courts have established the prejudgment rate for a wage and hour case is 7%. (Naranjo vs. Spectrum Security Services, Inc. (2022) 13 Cal.5th 93, 121.) The interest request was correctly calculated from February 28, 2025 (Plaintiff’s date of termination) to May 7, 2026 (date judgment was entered).

III.

CONCLUSION

Plaintiff’s motion

for attorney fees and costs is GRANTED in the reduced amount of \$16,872.94.

Dated this 17th
day of September 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court